

18CMCV00032 18CMCV00032

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-08-05

Motion: DEFENDANTS' MOTION TO CORRECT CLERICAL ERROR IN STATEMENT OF DECISION

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Case Number: 18CMCV00032 Hearing Date: August 5, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

ROLAND LEON,

Plaintiff,

vs.

RICHARD

LEON, et al.,

Defendants.

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CASE NO: 18CMCV00032

[TENTATIVE]

ORDER RE: DEFENDANTS' MOTION TO CORRECT CLERICAL ERROR IN STATEMENT OF
DECISION

Dept.

A

DATE:

August 5, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 10/31/2018

CROSS-COMPLAINT

FILED: 03/04/2019

DISPOSED:

06/10/2026

MOVING

PARTY: Defendants Richard
Leon and Robert Leon

RESPONDING

PARTY: Plaintiff Roland Leon

1. Background

On October 31, 2018, plaintiff Roland Leon ("Plaintiff") filed his complaint in this action against defendants Richard Leon and Robert Leon (collectively, "Defendants"), alleging causes of action for partition of real property; accounting; partnership dissolution; constructive trust; breach of fiduciary duty; and waste. On March 4, 2019, Defendants filed a cross-complaint against Plaintiff, alleging causes of action for breach of fiduciary duty, accounting, and declaratory relief.

A non-jury trial commenced on September 2, 2025. On June 11, 2026, judgment was entered for Plaintiff and against Defendants on Plaintiff's first cause of action in the complaint and against Plaintiff on his remaining causes of action. Judgment was entered for Defendants and against Plaintiff on their first and third causes of action in the cross-complaint and against Defendants on their second cause of action.

2. Discussion

Defendants

move to correct a clerical error in the Statement of Decision dated June 10, 2026. Defendants contend that on page 4, line 22 and on page 7, line 23, decedent Candido Roland is incorrectly stated as having passed away on March 11, 2025, but that the correct date of death is April 11, 2017. Defendants also contend that page 11, line 1 is incorrect, but fail to state how it is incorrect.

In response,

Plaintiff contends that page 11, line 1, stating that "Richard and Roland

request a judicial declaration of rights, responsibilities, and obligations of Roland as to them..." should correctly read that "Richard and Robert request a judicial declaration of rights, responsibilities, and obligations of Roland as to them..." Plaintiff also requests that the court modify the statement of decision to state that Plaintiff is the prevailing party and is entitled to an award of costs and attorney's fees.

In their reply, Defendants state that some text was cut off from the page in the motion and that the opposition correctly states that page 11, line 1 should read "Richard and Robert request..." rather than "Richard and Roland request..."

A clerical error is an inadvertent one that cannot reasonably be attributed to the exercise of judicial consideration or discretion. The test is whether the challenged judgment was made or entered inadvertently (clerical error) or advertently (judicial error). (Bowden v. Green (1982) 128 Cal.App.3d 65.) Pursuant to Code of Civil Procedure § 473, subd. (d), the court may correct clerical mistakes in its judgment or orders as entered so as to conform to the judgment or order directed.

The court will correct page 4, line 22 and on page 7, line 23 of the Statement of Decision to state that Candido Roland's date of death was April 11, 2017. The court will correct page 11, line 1 to state that "Richard and Robert request a judicial declaration of rights, responsibilities, and obligations of Roland as to them..."

The court will decline to modify the statement of decision to state that Plaintiff is the prevailing party and therefore is entitled to an award of costs and attorney's fees. This omission was not inadvertent. The court may make any required prevailing party determination in connection with a timely and properly filed motion for attorney's fees and memorandum of costs. Furthermore, a response to another party's motion to correct clerical errors in the Statement of Decision is not the correct procedural vehicle for this request.

3. Conclusion

Based on the
foregoing, the court GRANTS Defendants' motion to correct clerical errors in
the Statement of Decision. The court DENIES Plaintiff's improper request to
modify the Statement of Decision.

Defendants are ordered to give notice. IT IS SO ORDERED.

DATED: August 5, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court